

RC-5 and RC-8 Residential Compound Districts

The RC-5 and RC-8 *residential compound* districts are intended to be medium-density residential areas allowing the development of new dwelling units in harmony with the existing character of the city's compound areas.

Dimensional Standards

Max density RC-5 = 5 dwelling units per acre; RC-8 = 8 dwelling units per acre

The maximum gross density in districts that permit residential use is 0.4 dwelling units per acre if neither public sewer nor water is provided, and one dwelling unit per acre if either public sewer or water is provided.

Buffer for Nonresidential Development Abutting Residential

- (a) *Nonresidential development* that abuts a *residential development* or an undeveloped *parcel* in a *residential zoning district* shall provide a continuous *landscaped* buffer strip not less than fifteen (15) feet wide.
- (b) Plant material in the *landscaped* buffer shall, at a minimum, conform to the requirements for *open space* provided in Subsection 14-8.4(H).
- (c) The *landscaped* buffer may be considered part of any required *open space* so long as all other conditions of the *open space* requirement are satisfied.

Calculating Density:

Total units allowed for the individual parcel = Number units allowed per code (i.e. R21=21) * Acres for the property. I.E. R-21 with 0.19 acres is 21*0.19=3.99 units.

Per: 14-7.2(B)(6) if the result is other than a whole number, the number shall be rounded down to the nearest whole number except as set forth in Subsections 14-7.2(B)(7) or (8). This is the allowable number of dwelling units for the site. This means for our example the allowed units would be 3.

Minimum lot: Area: 4,000 square feet

It is intended that the *common open space* required in single-family subdivisions where the *lot* size has been reduced from that of a conventional subdivision be a compensation to occupants for reduced *lot* size. It is further intended that *common open space* be usable and be provided for occupants outside of the *lot* but within the subdivision.

Where the *lot* size is between two thousand (2,000) and four thousand (4,000) square feet, *common open space* is required in an amount such that the sum of the square footage of the *lots* in the *development* plus the sum of the square footage for *common open space*, all divided by the number of single-family *lots*, equals no less than four thousand (4,000) square feet.

Max height: 24'

Gross floor area of all stories above ground level shall not exceed 50% of the ground floor area; provided that in calculating the allowable second floor area of attached buildings, the total gross heated area of the attached buildings shall be used regardless of ownership status.

Setbacks: Street: None required if wall between 6 & 8 feet high is built between building & street; otherwise, 15-foot setback required.

Side: 5-foot setback required;

Rear: if wall between 6 and 8 feet high built then 5-foot rear setback required; otherwise, without a wall then 15-foot required. No portion of any story above ground level story shall be closer than 15 feet from property line.

A garage or carport with vehicle entrance facing the street must be set back 20 feet from the street property line.

Max lot cover: Without compound dwelling units: 40%. With compound dwelling units with private open space 14-7.5(C)(1)(c) applies:

Private Open Space

The intent of private open space is to ensure easily available access to the outdoors in medium- to high-density developments, and to provide for a sufficient sense of privacy.

Requirements are as follows:

- 1) the maximum lot coverage may be increased in accordance with Table 14-7.2-1 if open space for each dwelling unit is provided as follows:
 - a. for lots in R-1, R-2, R-3, R-4, R-5, R-6, R-7, R-7I, R-8, R-9, RC-5 and RC-8 districts, an amount not less than fifty percent of the total gross floor area of that dwelling unit; and
 - b. for lots in R-10, R-12, R-21 and R-29 districts, an amount not less than thirty percent of the total gross floor area of that dwelling unit.
 - c. The open space provided to meet the requirements of Subsections (1)(a) and (1)(b) above may be counted toward meeting the open space requirement in Table 14-7.2-1 for multi-family dwelling units.
- 2) balconies, roof decks or roofed areas such as porches or portals may be included as all or part of the required private open space;
- 3) private open space does not include stormwater ponding areas;
- 4) the minimum dimension for required private open space located on the ground shall not be less than twelve (12) feet, and not less than four (4) feet and forty (40) square feet for balconies, roof decks or other private open space that is not located on the ground;
- 5) finished grade for required private open space shall have a slope no greater than one (1) vertical foot in ten (10) horizontal feet; and
- 6) accessory dwelling units shall also be required to meet the private open space criteria in this Subsection 14-7.5(C); provided, however, that private open space for the accessory dwelling unit does not have to be physically separated from the private open space for the principal dwelling unit, and up to fifty percent of the private open space required for the accessory dwelling unit may be the same private open space provided for the dwelling unit; and

- 7) there are no planting requirements for private open space.
8) Private open space must be adjacent to and directly accessible from the unit for which it is provided.

Minimum Qualifying Open Space

Detached single family dwellings – 14-7.2(C) – None except as provided for lot size averaging. It is intended that the *common open space* required in single-family subdivisions where the *lot* size has been reduced from that of a conventional subdivision be a compensation to occupants for reduced *lot* size. It is further intended that *common open space* be usable and be provided for occupants outside of the *lot* but within the subdivision.

Where the *lot* size is between two thousand (2,000) and four thousand (4,000) square feet, *common open space* is required in an amount such that the sum of the square footage of the *lots* in the *development* plus the sum of the square footage for *common open space*, all divided by the number of single-family *lots*, equals no less than four thousand (4,000) square feet.

Multiple family dwellings: common open space = 50% total gross floor area of all buildings, plus private open space = 25% of gross floor area of each unit.



~~Australian Education Amendment (Capital Funding Indexation and Other Measures) Regulations 2024~~

~~I, the Honourable Sam Mostyn AC, Governor General of the Commonwealth of Australia, acting with the advice of the Federal Executive Council, make the following regulations.~~

Dated 12 September 2024

Sam Mostyn AC
Governor-General

By Her Excellency's Command

Jason Clare
Minister for Education

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1 Name

————— This instrument is the *Australian Education Amendment (Capital Funding Indexation and Other Measures) Regulations 2024*.

2 Commencement

————— (1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this instrument	The day after this instrument is registered.	14 September 2024

Note: ——— This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

————— (2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

3 Authority

————— This instrument is made under the *Australian Education Act 2013*.

4 Schedules

————— Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

The information provided in this is a summary of the Chapter 14, SFCC 1987 as of the date in which it was assembled. Please reference the City of Santa Fe Chapter 14 SFCC regarding this district (Chapter 14-4 Zoning Districts, Chapter 14-6 Permitted Uses, and Chapter 14-7 Building Envelope and Open Space Standards and Measurements)
https://library.municode.com/nm/santa_fe/codes/code_of_ordinances?nodeId=CH14LADE. February 2, 2022

~~Schedule 1—Capital funding indexation~~

~~*Australian Education Regulations 2023*~~

~~1 At the end of section 24A~~

~~Add:~~

~~—————; and (f) for 2024 —108.85%.~~

Schedule 2—Guidelines and other documents

Australian Education Regulations 2023

1—Subsection 4(1)

Insert:

Capacity to Contribute Data Validation and Quality Assurance Process means the document titled *Capacity to Contribute Data Validation and Quality Assurance Process* published by the Department and prescribed by the Minister for the purposes of this instrument from time to time.

2—Subsection 4(1) (definition of Capital Grants Program Guidelines)

Repeal the definition, substitute:

Capital Grants Program Guidelines means the *Capital Grants Program Guidelines* issued by the Department and prescribed by the Minister for the purposes of this instrument from time to time.

3—Subsection 4(1) (definition of Choice and Affordability Fund Guidelines)

Repeal the definition, substitute:

Choice and Affordability Fund Guidelines means the *Choice and Affordability Fund Guidelines* issued by the Department and prescribed by the Minister for the purposes of this instrument from time to time.

4—Subsection 4(1) (definition of DMI methodology document)

Repeal the definition, substitute:

DMI methodology document means the *Direct Measure of Income Methodology Document* issued by the Department and prescribed by the Minister for the purposes of this instrument from time to time.

5—Subsection 4(1) (definition of Ministerial Council disability guidelines)

Repeal the definition, substitute:

Ministerial Council disability guidelines means guidelines for the Nationally Consistent Collection of Data on School Students with Disability approved by the Ministerial Council and prescribed by the Minister for the purposes of this instrument from time to time.

The information provided in this is a summary of the Chapter 14, SFCC 1987 as of the date in which it was assembled. Please reference the City of Santa Fe Chapter 14 SFCC regarding this district (Chapter 14-4 Zoning Districts, Chapter 14-6 Permitted Uses, and Chapter 14-7 Building Envelope and Open Space Standards and Measurements)
https://library.municode.com/nm/santa_fe/codes/code_of_ordinances?nodeId=CH14LADE. February 2, 2022

~~Schedule 1 Capital funding indexation~~

~~6 Subsection 4(1) (definition of NAPLAN Online Data Extract Dictionary)~~

Repeal the definition, substitute:

NAPLAN Online Data Extract Dictionary means the NAPLAN Online Data Extract Dictionary issued by ACARA and prescribed by the Minister for the purposes of this instrument from time to time.

~~7 Subsection 4(1) (definition of Non-Government Reform Support Fund Guidelines)~~

Repeal the definition, substitute:

Non-Government Reform Support Fund Guidelines means the *Non-Government Reform Support Fund Guidelines* issued by the Department and prescribed by the Minister for the purposes of this instrument from time to time.

~~8 Subsection 4(1) (definition of student with disability)~~

Repeal the definition, substitute:

student with disability means a student about whom specified information must be provided under the Ministerial Council disability guidelines.

~~9 After section 5~~

Insert:

~~5A Ministerial prescription of guidelines and other documents~~

- (1) For the purposes of a definition in subsection 4(1), the Minister may, by legislative instrument, determine that guidelines are prescribed for the purposes of this instrument.

Note: — See the definitions of *Capital Grants Program Guidelines*, *Choice and Affordability Fund Guidelines*, *Ministerial Council disability guidelines* and *Non-Government Reform Support Fund Guidelines* in subsection 4(1).

- (2) For the purposes of a definition in subsection 4(1), the Minister may, by legislative instrument, determine that a document is prescribed for the purposes of this instrument.

Note: — See the definitions of *DMI methodology document*, *NAPLAN Online Data Extract Dictionary* and *Capacity to Contribute Data Validation and Quality Assurance Process* in subsection 4(1).

~~10 Section 17A~~

After “for a year if”, insert “in relation to that year”.

~~11 Section 17A~~

Omit “for the year”.

12 Paragraph 23(1)(c)

Omit “document titled *Capacity to Contribute Data Validation and Quality Assurance Process* published by the Department and as existing from time to time”, substitute “Capacity to Contribute Data Validation and Quality Assurance Process”.

13 Subsection 23(1) (note)

Repeal the note.

14 Paragraph 25B(1)(c)

Repeal the paragraph, substitute:

- _____ (c) any written arrangement between the Secretary and the non-government representative body relating to financial assistance payable to the body under Division 4 of Part 5 of the Act (funding for non-government representative bodies) that the Minister determines is relevant to the determination under section 70 of the Act; and

15 Paragraph 31(1)(d)

Repeal the paragraph, substitute:

- _____ (d) if:
 - _____ (i) there is a written arrangement between the Secretary and the non-government representative body relating to financial assistance payable to the body under that Division; and
 - _____ (ii) the Minister has, by legislative instrument, determined that financial assistance must be spent in accordance with that arrangement;
- _____ in accordance with that arrangement; and

16 Paragraph 36(7)(c)

Repeal the paragraph, substitute:

- _____ (c) if:
 - _____ (i) there is a written arrangement between the Secretary and the non-government representative body relating to financial assistance payable to the body under Division 4 of Part 5 of the Act (funding for non-government representative bodies); and
 - _____ (ii) the Minister has, by legislative instrument, determined that reports must be given in accordance with that arrangement;
- _____ in accordance with that arrangement.

17 Subsection 52(5)

Omit “for the year”.

The information provided in this is a summary of the Chapter 14, SFCC 1987 as of the date in which it was assembled. Please reference the City of Santa Fe Chapter 14 SFCC regarding this district (Chapter 14-4 Zoning Districts, Chapter 14-6 Permitted Uses, and Chapter 14-7 Building Envelope and Open Space Standards and Measurements)
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~~Schedule 1~~ Capital funding indexation

~~18 Paragraph 58A(2)(e)~~

Omit “for the year”.

~~19 Subsection 58A(6)~~

Omit “for a year” (wherever occurring).